Barry Scannell (William Fry) as counsel to the Noesis group: fit read

Source: EOLAS pre-meeting pack for Shane, 9 Nov (8 pages; open-source, two-model checked; Cuan has not re-verified) set against Shane's 8 Nov Review Note (20 points). Meeting with Barry pencilled 10:00 Tue 24 Nov, William Fry; no reply yet to John's 5 Nov email.

WHO HE IS (pack, in five lines)

- Partner, Technology Group, William Fry (partner since May 2024); solicitor admitted 2014; clean record on the registers checked.
- PhD (UCC, 2024) on copyright and AI; Government AI Advisory Council since Jan 2024; chaired its creative-sector subgroup.
- **Lane:** AI copyright, AI contracts and data licensing, EU AI Act compliance, data protection.
- **Not on his published list:** patents, trade secrets, trade marks, IP due diligence. No named IP matter he led; two deal credits as the supporting tech lawyer.
- Clients anonymised; both sides of AI copyright (media owners; big tech). Firm's books are large corporates.

WHERE HE FITS THE NOESIS WORK

Noesis need (Review Note point)	Fit	Why
Chain of title, moral-rights waivers (11; Docs 7, 9)	**Good**	Copyright is his field (CRRA 2000 ss.23, 116, 121); trade secrets and 15,000+ asset schedule are not on his list.
Licence and data terms (19; Doc 8)	**Good**	AI contracts, dataset and licensing agreements; GDPR Art 28 terms.
AI Act posture, Fiducia, Investor Rider claims (12, 18)	**Good**	EU AI Act compliance and governance are his core work.
Share classes, constitutions, s.238 approvals, execution (7 to 10, 16, 20)	**Partial**	Company law is not his lane; a William Fry corporate partner (or Pat with a solicitor) is needed.
Step 3 IP transfer: price, valuation, CGT, stamp duty, degrouping (1 to 6)	**No**	Tax is outside his lane. This is the point Pat calls the principal tax timing issue.
Patents, trade marks, IP due diligence for investors	**No**	No patent attorney found at the firm; Pat's Cork IP solicitor, David Reilly, covers this side.

WATCH-OUTS

- **Conflicts:** the firm acts for Google Ireland, Mediahuis, IBM, Intercom; he advises big tech and rights-holders. Firm conflict check before anything is shared.
- **Capacity:** partner, Government Council, IMMA board (to 2031), full speaking diary.
- **Cost:** no start-up, fixed-fee or retainer offer found; a pre-revenue group needs a scoped, phased fee cap.
- **Fit of voice:** his public view is compliance-led and balanced; his subgroup advised ending Ireland's computer-generated-works rule (affects how AI-made IP is protected).

AS CHAIRMAN: FIVE POINTS FOR THE CONVERSATION WITH SHANE

- **1. Scope.** Ask Barry for AI copyright, licensing and AI Act work only, and ask William Fry who leads tax and corporate for the same instruction.
- **2. Client.** The group (Noesis, Asterial) engages him, by board decision with a fee cap. Not Shane personally.
- **3. Separate advice.** Shane personally (he assigns the IP and gives the warranties) needs advice separate from the companies. Your own terms need someone independent.
- **4. Sequence.** Tax route and structure first (Pat and a tax adviser, Tue 10 Nov); counsel's IP and licensing review after the structure is settled.
- **5. Before 24 Nov.** Conflict check; written scope and fee; which of the 20 review points he is to answer.

Questions to put to Barry: who at William Fry leads tax and corporate on this; his time on the file; conflict clearance (Google Ireland, OpenAI-linked clients); fee basis; whether he has acted on a founder-to-company IP assignment before.